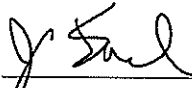


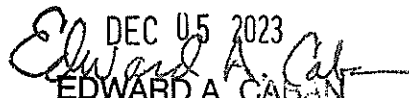
FIRST ENDORSEMENT

Executive Director, Jonathan Darche, Civilian Complaint Review Board to Assistant Deputy Commissioner Nancy Slater, Department Advocate's Office, August 21, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-26717 against Sergeant Charles Arnone, Tax Registry No. 950021. The case was conferenced on April 18, 2023, before Assistant Deputy Commissioner of Trials Paul Gamble, who approved the negotiated penalty of Command Discipline Schedule (B) forfeiture of TEN (10) vacation days. The Charges and Specifications will be dismissed for plea purposes.



Jonathan Darche, Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

DEC 05 2023

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-26717
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, ARNONE	FIRST CHARLES	M.I.	COMMAND INTELL-CRIM. SECT. (DORMANT)
SHIELD NO. 408	TAX REGISTRY NO. 950021	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2011	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Sergeant Charles ARNONE, on or about February 19, 2021, at approximately 1548, while assigned to INT FIOPRG and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) in Brooklyn without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Sergeant Charles ARNONE, on or about February 19, 2021, at approximately 1548, while assigned to INT FIOPRG and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) in Brooklyn without sufficient legal authority.	DISMISSED	

DC Brakins
FIRST DEPUTY COMMISSIONER

9/22/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

12/5/23
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 16, 2023

Re: CCRB Case No. 202103105 (Incident Date: February 19, 2021) involving Sergeant Charles Arnone, Tax No. 950021 (DADS No. 2022-26717)

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty regarding the substantiated allegations against Sergeant Charles Arnone and determined that the actions of Sergeant Arnone do not warrant the imposition of the proposed penalty.

In this case, officers from the 71st Precinct responded to a call of a vehicle that was just stolen from in front of a commercial location. After a preliminary investigation, the officers engaged in a pursuit of the individual who they had probable cause to believe had stolen the vehicle. Eventually, they encountered this individual and chased him up the first floor stairwell in the building where he resided. As they ascended the first floor stairs behind the individual, they lost sight of him as he turned onto the second floor landing. Since they did not hear him enter the apartment on the second floor, they reasonably believed that he proceeded to the § 87(2)(b) apartment. After being unsuccessful at locating him inside the § 87(2)(b) apartment, they returned to the § 87(2)(b) apartment and called for backup.

Sergeant Arnone arrived approximately fourteen minutes later. With the information he gathered from the officers already on scene, he believed that they had verified that the individual lived in the § 87(2)(b) apartment. Additionally, based on statements from the others on scene, he believed that they had already searched the apartment at some point prior to his arrival, but were unable to find the individual. Sergeant Arnone, intending to perform what he described as a "safety check" for the individual, entered § 87(2)(b) apartment and searched it. CCRB concluded that a warrantless entry was impermissible in this situation and that Sergeant Arnone should be

issued a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Given the fact that Sergeant Arnone was relying on information he received from the initial responding officers, and that he was acting in good faith to assist in the apprehension of a wanted felon, a lesser penalty is warranted.

The Police Commissioner further recognizes that Sergeant Arnone has had an exceptional career with this Department thus far, with a minimal disciplinary history. Therefore, the Police Commissioner intends to dismiss the Charges and Specifications in this matter against Sergeant Arnone and direct the issuance of a Schedule "A" Command Discipline, with the forfeiture of five (5) vacation days, for the improper entry and search of the apartment.

Sincerely,

NSP

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Matthew Schieffer, Esq.
John D'Alessandro, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

December 4, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202203105 (Incident Date: February 19, 2021) involving Sergeant Charles Arnone, Tax N. 950021 (DADS No. 2022-26717)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Andrew Marino, dated November 16, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent, in the interests of justice, to retain jurisdiction over this matter and take no disciplinary action against Sergeant Arnone. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Marino stated that after reviewing the recommendation of the CCRB, you determined that the recommended penalty should be a Schedule “A” Command Discipline, with the forfeiture of five (5) vacation days for SGT Arnone because SGT Arnone was relying on information he received from the initial responding officers and that he was trying to assist in the apprehension of a wanted felon.

The CCRB determined that SGT Arone’s misconduct warranted the presumptive penalty under the 2022 Discipline Matrix because of SGT Arone’s rank and the importance of the Fourth Amendment. While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested in the interest of justice that the Police Commissioner endorse the plea as agreed to by the parties and submitted in this matter.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board